

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1124 OF 2010

Abdul Kuddus Mazi and others

----- Contesting Defendant Nos. 80-91-
Respondents Nos. 88 to 99-petitioners
=Versus=

Md. Aklas Mazi and others

----- Plaintiffs-Appellants -Opposite Parties

Mr. Md. Abdur Rashid with

Mr. Md. Abdul Gaffer, Advocates

----- For the Petitioners

Mr. Md. Shahidul Islam with

Mr. Md. Riaz Hossain Sikder with

Ms. Naharin Begum and

Mr. Md. Mizanur Rahman, Advocates

----- For the Opposite Parties

Heard on: 13.07.2017

Judgment on: 10.08.2017.

At the instance of the present Contesting Defendant Nos. 80-91-Respondents Nos. 88 to 99-petitioners, Abdul Kuddus Mazi and others, this Rule has been issued calling upon the opposite party Nos. 1-33 to show cause as to why the impugned judgment and decree dated 31.08.2009 passed by Additional District Judge, Jalakhati in Title Appeal No. 18 of 2008 allowing the appeal reversing the judgment and decree dated 28.02.2008 passed by the Joint District Judge, 2nd Court, Jalakhati in the Title Suit No. 7 of 1997 dismissing the suit should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present opposite party Nos. 1-17 as the plaintiffs filed the Title Suit No. 07 of 1997 in the court of the learned Joint District Judge, 2nd Court, Jhalakati for partition of the suit land measuring 3.57 acres of land out of 6.25 acres as mentioned in schedule 'Ka' of the plaint and also for declaration of title mentioned in schedule 'Kha' and also for a declaration that the judgment and decree passed on 16.04.1989 in the Title Suit No. 65 of 1988 by the learned Assistant Judge, Nalchity as collusive and not binding.

The case in the plaint is that one Chandu Mazi was the owner of 2.27 decimal of land in Khatian (Khebat) No. 352, 2.26 decimal in Khatian (Khebat) No. 8, 70 decimal in Khatian (Khebat) No. 15 under Jurkathi mouza, Nalchity, Jhalakati. The land measuring 1.05 Khatian (Khebat) was owned jointly Chandu Mazi and Somer Mazi in equal shares. Land measuring 4.42 decimal in Khatian (Khebat) No. 540 under the above mouza was owned by Sadhak Mazi, Pashan Bibi and Somer Mazi. Chandu Mazi died leaving behind 2(two) sons Akot Mazi and Hashem Mazi and Soleman Bibi as widow and 3(three) daughters Jamina, Momena and Amena. Akot given a Patton and executed a sale deed both on 16.12.1939 to Abdul Karim Howlader, however, on 15.01.1940 Akot Mazi took back land by way of Patton in the Khatian (Khebat) No. 540, accordingly Abdul Karim Howlader issued Dakhila in favour of Akot Mazi on receipt of rent. The R.S. record of right was not published in the name of Akot Mazi, thus, he

filed the suit in the than first Munsif Barisal and he obtained decree the brothers of Akot Mazi namely Hasem Mazi was an owner who died leaving behind a daughter Moyna Bibi and brother Akot Mazi. Akot Mazi died leaving behind the present plaintiffs who became owner of total land measuring 3.57 acres as describe in schedule 'Ka' but S.A. and R.S. were not published in their names. The present opposite parties as the defendant Nos. 82 of 92 filed the Title Suit No. 65 of 1988 regarding land measuring .58 acres and obtained an exparte decree on 16.04.1989 by practicing fraud.

The defendant Nos. 1 'Ka'-1'Jha' contested the suit by filing written statement contending, *inter-alia*, that 6.25 acres of land in Khatian (Khebat) No. 352, 801, 438, 540 was owned by Chandu Mazi and also 1.47 and $\frac{1}{2}$ in Khatian (Khebat) No. 540 was owned by Pashan Bibi but on her death Chandu Mazi became owner of 7.72 and $\frac{1}{2}$ acres. In course of inheritance Amena Bibi became owner of 1.70 acres of land who died before Abdur Rahman, the predecessors of Defendant Nos. 1 'ka'-1 'Jha'. Along with the other land they became owner of total land measuring 3.02 and $\frac{1}{2}$ acres. The defendant Nos. 2-8 filed written statement claiming for saham of land measuring .82 acres claiming their right by way of an oral gift and a sale deed. The defendant Nos. 80-91(present petitioner) contested the suit by filing a written statement denying the statement made in the plaint and contending that Akot Mazi, Chandu Mazi transferred land measuring

2.16 acres by way of a patta dated 16.12.1939 and land measuring .97 acres by way of a sale deed in favour of the predecessors of these defendants namely Sader Mazi but he purchased the land in the name of Abdul Karim Howlader and the land was recorded in the name of Benamder as well as Sader Mazi who purchased in the name of Abdul Karim Howlader. The defendant Nos. 106, 117 and 205, contested the suit by filing separate written statement claiming their respective saham.

After hearing the parties the learned Joint District Judge, 2nd Court, Jalakhati dismissed the suit by the judgment and decree dated 28.02.2008. Being aggrieved the present plaintiff Nos. 1-17. Opposite parties preferred the Title Appeal No. 18 of 2008 in the court of the learned District Judge, Jalakhati which was heard by the learned Additional District Judge, Jalakhati on transfer who by his judgment and decree dated 31.08.2009 allowed the appeal and there by reversing the judgment and decree of the learned trial court. This revisional application has been filed challenging the legality of the said impugned judgment and decree and the present Rule was issued thereupon.

Mr. Md. Abdur Rashid, the learned Advocate, appearing with the learned Advocate, Md. Abdul Gaffer, submits that the learned trial court held that Akot Mazi on 16.12.39 by Patta deed and Kabala deed (Exhibit-6 and 7) transferred his entire land to Abdul Karim Howlader which has also been stated in the pliant also, but after gap of only 30

days i.e. on 15.01.40 he again took pattan from said Abdul Karim Howlader by two kabuliyat Nos. 84 and 85 (Exhibit Nos. 8 - 8(a) and it was though claimed that said two kabuliats were executed and registered by Abdul Karim Howlader, but the plaintiffs failed to prove by documentary evidence that Abdul Karim accepted said Akot Mazi as his tenant and hence on the basis of such Kabuliats after transferring the suit land to Abdul Karim before 30 days, no right and title has been created in favour of Akot Mazi or plaintiffs and hence the suit was rightly dismissed by the trial court, but the appellate court without independent findings reversed the trial court's judgment and thus committed an error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocates further submits that the learned trial court rightly held that it is admitted fact that the names of plaintiff predecessors have not been recorded in R.S. and S.A. record and by exhibiting deed dated 08.06.57 (Exhibit-9) the plaintiffs though claimed the ownership of .55 decimals or land of Khatian (Khebot) No. 352, but in the schedule of said deed Khatian (Khebot) No. 352 has not been included and hence on the basis of such deed right and title of the plaintiffs has not been proved and hence the learned court has dismissed the suit rightly but the learned appellate court without considering the same reversed the trial court's judgment and decree and thus committed an error of law resulting in an error.

The Rule has been opposed by the present opposite party Nos. 1-17 and also by 18-26.

Mr. Md. Shahidul Islam, the learned Advocate, appearing along with the learned Advocates Mr. Mizanur Rahman with Ms. Naharin Begum, and Mr. Md. Riaz Hossain Sikder, submits that the learned trial court failed to consider the documentary and oral evidence by the witnesses came to a wrongful conclusion to dismiss the suit, however, the learned appellate court below lawfully decreed the suit in part allocating saham upon the land measuring 2.68 acres on the basis of the documents adduce and produce by the parties as such no interference from this Court is called for and the Rule should be discharged. The learned Advocates also submits that the present petitioner were not the contesting parties in the courts below as such there is no ground to be aggrieved by them and the present petitioners claimed through a Patta dated 15.01.1940 which was not acted upon in order to make any claim or entitlement by way of saham, but the present Rule has been obtained by misleading the court which is liable to be discharged.

Mr. Md. Mizanur Rahman, the learned Advocate appearing for the opposite party Nos. 18-26 (defendant No. 1 'Ka'-1'Jha' in the original suit) submits that the present opposite parties are the successors of Amena as the daughter of Chandu Mazi accordingly, R.S. record was published in the name of Amana's son Abdur Rahman in the R .S. record of right and also by way of purchase

through the sale deed dated 17.09.1962 (exhibit-Ka), thereby, became owners of total land measuring 3.02 and $\frac{1}{2}$ acres but the learned appellate court below allocated saham of 2.65 acres by the impugned judgment and the present petitioners did not sought no saham therefore the petitioners should not be aggrieved by the impugned judgment and the Rule issued by this court should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and also considering a huge volume of the lower court records, it appears to me that present opposite party Nos. 1-17 as the plaintiffs failed the title suit claiming title, partition and also challenging the legality of a decree passed in the Title Suit No. 65 of 1988. I have perused the plaint and the written statements filed by the respective defendants in the suit. This suit is more a partition than any other remedy because a details calculation for allocating saham is required in order to come to a lawful conclusion in this suit.

There are some admitted position in the present suit, which are, that the Chandu Mazi was the original owner of the total suit land and Chandu Mazi died leaving behind 2(two) sons Akot Mazi and Hashem Mazi and 3(three) daughters namely Jamina, Momina and Amina. However, the dispute arose among the parties as to the subsequent successions of land from Akot Mazi because Hashem Mazi died

leaving behind a daughter and his wife. Most of which property devolved upon Akot Mazi by way of inheritance. The present plaintiff opposite party Nos. 1-17 have claimed their saham as the legal heirs of Akot Mazi. Akot Mazi transferred by settling the land and also transferring some portion of land on 16.12.1939 in favour of one Abdur Karim Howlader which was returned on 15.01.1940 by two kabuliyat but record of right was published in the name of Abdul Karim Howlader and also in the name of Sader Mazi which is not correct to publish the record of right in the name of Benamder as well as the Benami transferee because it is still principal that both Benamder remained owners of the property unless and until the property is transferred back in the name of benami transferee therefore the name of Sader Mazi in the S.A. and R .S. record of right cannot be a valid document in favour of the predecessor of the present petitioner. Accordingly, any claim from the successor of Abdul Karim Howlader would have given a saham upon the land measuring 57 decimal. Regarding the claims of present plaintiff opposite party Nos. 1-17 and opposite party Nos. 18-26 being the defendant Nos. 1 'Ka' - 1 'Jha', I consider that these opposite parties could prove there entitlement upon the suit land, accordingly the land measuring 2.68 acres has been establish instead of 3.57 acres of land as claimed by the plaintiff opposite parties and also 2.65 acres of land as claimed by present opposite party Nos. 18-26 instead of claimed land measuring 3.02 and $\frac{1}{2}$ by way of inheritance and by way of purchase.

I am now inclined to examine the judgment and decree passed by the learned courts below. The learned trial court failed to consider the appropriate genealogy and law of succession therefore came to a wrongful conclusion to dismiss the suit on the basis of the following findings:

“নালিশী সম্পত্তিতে বাদী পক্ষের কোন স্বত্ব দখল না থাকায় এবং আঃ করিম হাং এর সম্পত্তিতে বাদী পক্ষের কোন স্বার্থ না থাকায় তর্কিত দেং ৬৫/৮৮ নং মোকদ্দমার রায় ও ডিক্রীর যৌক্তিকতা বাদীপক্ষ চ্যালেঞ্জ কর-ত অধিকারি নন। এমতাবস্থায় আরজীর (ক) তপছিল বর্নিত বিরোধীয় রায় ও ডিক্রী সঠিক কার্যকর আরজীর তফছিল বর্নিত ভূমি-ত বাদীপ-ক্ষের কোন স্বত্ব দখল না থাকায় এবং (গ) তফছিল বর্নিত রায় ও ডিক্রী সঠিক ও কার্যকর মর্মে প্রমানী।”

However, the learned appellate court below properly considered the genealogy and the way of succession from the original owner Chandu Mazi as the C.S. recorded owner, thereby, came to a lawful conclusion to allocate their respective saham for the plaintiffs as well as the other defendants on the basis of the documentary evidence produced in the court and came to a lawful conclusion on the basis of the following findings:

“বাদী উক্ত দলিল মূলে আব্দুর রহমান ও মমিনা খাতুনের বাবদ ৩৭ শতক জমি প্রাপ্ত হই-ব। উ-ল্লিখিত রূপ ভা-ব বাদীপক্ষ ১৫/১/৪০ ইং তারি-খর দলিল মূ-ল ২.৩১ শতক এবং ৮/৬/৫৭ ইং তারি-খর দলিল মূ-ল .৩৭ শতক এক-ন ২.৬৮ শতক জমি-ত স্বত্ববান মালিক দখিলকার নিযুক্ত আ-ছ মর্মে অত্রাদালত সিদ্ধান্ত গ্রহন ক-রন। বাদীর মূল মামলাটি রক্ষীয় ছিল। উহা-ত হসপট ও পক্ষ-দায নাই। বাদীর মোকদ্দমাটি তামাদী বারিত ন-হ। বিবাদী-দর নামিক নালিশী জমি সম্পর্কিত রেকর্ড ভুল এবং বিবাদীর দা-য়র কৃত মোকাম নলছিটি সহকারী জজ আদালতের ৬৫/৮৮ নং দেওয়ানী মোকদ্দমার ১৬/০৪/৮৯ইং তারিখের ডিক্রী, ভাক্ত, ফেরবী মর্মে অত্রাদালত সিদ্ধান্ত গ্রহন করিলেন এবং উক্ত রূপ ডিক্রী মূলে

৮০-৯২ নং বিবাদী অনুকূলে কোন স্বত্ব উপজাত হয় নাই মর্মে অত্রাদালত সিদ্ধান্ত প্রদান করি-লন। বাদীপক্ষ নালিশী জমায় ৩.৫৭ শতক জমি বাবদ স্বত্ব দাবী করিয়া থাকি-লও তাহারা ২.৬৮ শতক জমি-ত স্বত্ব দখল প্রমান করি-ত সমর্থ হইয়াছে। তদাবস্থায় বাদীপক্ষ আংশিক ডিক্রী পাইবে।”

In view of the above discussions as to the factual aspects of this case and also after examining the 2(two) conflicting judgment, I am of the opinion that the learned trial court came to a wrongful conclusion by dismissing the suit where there was sufficient documents for succession of land by the subsequent heirs of Chandu Mazi. However, the learned appellate court below after considering the relevant document and the proper calculation of the land succeeded by the parties being the plaintiffs and the defendants on the basis of proper document and thereby came to a lawful conclusion to allow the appeal by setting aside the judgment and decree passed by the learned trial court. I am therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of stay upon the operation of the impugned judgment and decree passed at the time of issuance of the Rule is hereby recall and vacated.

The Section is directed to communicate the judgment and order to the concern Court below and also directed to send down the lower court records immediately.